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Power to Summon and Examination of Witnesses

- The police officer making an investigation is empowered to summon any person in writing requiring his attendance before himself.
- The summoning person may be informant or any other person.
- He may be acquainted with the facts and circumstances of the case.
- The person may be within the limits of the jurisdiction of the police station or any adjoining station limits.
- Male person below 15 yrs of age and any woman shall not be summoned to appear before a police officer at Police Station. They should be examined at the place of their residence.
- The State Govt. may provide transport expenses, if the persons are directed for their appearance.
- Sec 161 of CrPC empowers that a police officer may examine any person orally to ascertain the facts and circumstances of the case.
- The person must be supposed to be acquainted with the facts and circumstances of the case.
- The power of examining witnesses is given only to the police officers authorized to conduct investigation.
- Any police officer authorized by the state Government may also examine any person acting on the written requisition of the investigating officer.
- The word any person means not only examination of witnesses but also a person who subsequently becomes an accused.
- According to sec 160 (2) of CrPC the person who is supposed to be acquainted with the facts and circumstances of the case shall be bound to answer truly to all the questions relating to the case.
- He need not answer any questions which would have a tenancy to expose him to criminal charges or to a penalty or fore features.
- The witnesses are protected under the sub section by virtue of article 20(3) of the Constitution which guarantee immunity from self incrimination.
- As per 161(3) of CrPC, statement made during the course of investigation may be reduced into writing by the police officer.
- It is the discretion of the investigating police officer to examine any person or to record his statement in writing. The statement shall be recorded truly, separately for every person.
- The statement may also be recorded by audio and electronic means of video.
- Section 162 CrPC defines about the mode of recording statement and its value of evidence.
- The first object is the person who deposes the statement during investigation need not sign the same written by the police.
- The second object is that the statement so recorded or any part of the statement or any record in regard to the above whether in a police dairy or otherwise shall not be used for any purpose at the time of inquiry or trial in respect of the offence under investigation.
- The statement and part of the statement if is duly proved by the witnesses before the court of law.
- The accused can contradict such witnesses in the re-examination / cross examination

under the provisions of sec 145 of IEA with the due permission from the court to explain the statement or part of the statement or otherwise.

- Sec 162(2) of Cr.PC also gives certain exemption in the following circumstances.
- The statement will be admissible if it contains information leading to the discovery of a fact made to a police officer u/s 27 of IEA.
- Statement made by a person in his death bed is also admissible u/s 32(1) of IEA.

The following factors are incorporated in the explanation column of CrPC.

(i) Any omission to state a fact or circumstances in the statement reduced to writing by a police officer may amount to contradiction.

(ii) When the witnesses did not state a particular fact to the police in the course of investigation but the prosecution seeks to prove such vital fact through such witnesses such vital omission pointed out in the statement is nothing but a contradiction.

- Sec 163 CrPC restricts the police officer or any other person in authority against any inducement, threat or promise to procure any statement from any witnesses as per sec 24 of IEA.
- The object of this section is to ensure that the statement made by a person before the IO should be voluntarily made.
- This section shall not affect the provisions laid down in section 164(4) of CrPC which is the exclusive power of magistrate of recording statement from a person.

Examination of witnesses:

- Needless to emphasize that, cases are decided upon evidence and evidence mostly consists of statements (depositions) before the Court.
- A number of prosecutions end in acquittals merely because the prosecution witness examined before the Courts are not sure of their ground, the entire story is not elicited from them, they fumble and stumble statement during cross examination, they turn hostile or inadvertently give replies which are profitable for the defence, material contradictions creep into the testimony of various prosecution witnesses, their statements are not believed by the Courts because they are importable, incredible, inconsistent with natural human conduct or with the common course of natural acts etc.,
- Volumes could be written quoting case after case in which, on account of the defects in the statements of prosecution witnesses, (as noted above) have resulted in acquittals of accused. It could only be suggested here that the prosecutor should take care to satisfy himself that,
  (a) The witness is conversant with the circumstances of the case in which he is going to depose;
  b) The witness is not likely to break down during the cross- examination;
  c) The witness does not turn hostile.

The prosecutor should, during the course of the examination in chief ensure that:-

a) All the facts of the case which are within the knowledge of the witnesses are brought out in proper narrative form and in chronological sequence.

b) No leading questions are asked except by the specific permission of the Court;

c) The defence is not permitted to intimidate or brow beat the witness or in any way take undue advantage of the witness.

d) All the explanations for omissions, apparent contradictions, vagueness and ambiguities are drawn from his prosecution witness, either during examination in chief or during re- examination in chief or during re-examination.

e) If the witness turns hostile, he is declared as such and then cross-examined with reference to his earlier statement, under section 161 or under section 164. Cr. PC

f) Even in cases where the prosecution witness has given a favourable version during the

examination – in – chief but had completely rescinded during the cross- examination, he is treated as hostile with the permission of the court.

g) The investigating officer is invariably examined as a prosecution witness since failure to do so has been adversely commented upon;

h) All expert witnesses are examined and that their reports or plans or drawings, etc., are identified by them and marked as exhibits;

i) He does not close the evidence prematurely. The prosecutor should fully satisfy himself that evidence on all ingredients of the offence to be proved, on all facts in issue and relevant facts and circumstances (where evidence is of circumstantial nature) has been adduced in the court;

j) If need be, he should move the court to exercise its special powers under section 311, CrPC. to call for further witnesses with a view to clarify on any points in evidence.

k) Whenever, any contradiction has to be marked in statement recorded under section 161(3), Cr.PC. the statement should be duly proved either by the investigating officer or by admission of witness or by any other means. It is only after the parts so exhibited are brought on records that they should be exhibited.

Examination of approver:

Since the practice and procedure of the cases in which pardon is tendered to the accused under section 306 Cr.PC. differs from other trials unless all the technicalities are observed and the approver's evidence is fully corroborated by other evidence, the case is likely to result in acquittal. In all such cases, the prosecutor should see that the approver is examined during the committal proceedings also. Otherwise, the proceedings would be illegal.

Classification of witnesses

- Interested witnesses
- Disinterested witnesses
- Nervous witnesses
- Unwilling witnesses
- Lying witnesses
- Hostile witnesses
- Child witnesses
- Woman witnesses
- Deaf, Dumb & Physically challenged witnesses

Methods of overcoming the witness reluctance to speak

- The IO should encourage him first by his exemplary behaviour by using all the powers of persuasion by promoting confidence.
- Understand the natural characteristics of the witness before hand and accord him suitable treatment.
- The IO should know his environment, religious, political, social stand, family profession; culture etc which hemp the proper cord in the witnesses.
- The attitude towards the witness should be guided by sympathy and patience. Avoid a strict approach.
- They must be made to feel that they are narrating their tale of anguish to their kith and kin and not to a mere policeman.
- Make the witness feel important as performing a duty in the administration of justice.
- Don't make him feel as somebody dragged into talking and then to be got rid of.
- Avoid criticism, sarcasm and pushing the witnesses.
- Don't give impression that you are going to verify his statement.
- Excite his curiosity to know the result of the case.
- Tickle his ego of helping to solve the problem and the pride of providing valuable information.
- The IO throwing his weight about, his impatience and resultant aggression and harassing the witness are not at all desirable.
- They should gently lead the witness along with required demonstration of his deep interest in the case, acknowledge the time devoted by him and make the witness to feel about his importance to the case.

- Above all, the IO should be a good psychologist to correctly understand, asses and tackle witnesses as they differ from person to person and each requires handling in a different manner.

Object and evidentiary value of witness examination during the course of investigation.

- Investigation is the processes of ascertaining the following facts and circumstances of the case.
- Collection of physical evidence
- Collection of information from witnesses which can be used as evidences by scientific and skilful interrogation.
- Examination of witnesses.
- Physical evidences collected and proved in the court of law without any limitation.
- The statement taken from the witnesses by the police can be used in court only for the purpose of contradicting them.
- Whereas statement taken from the accused can be used only in so far as statements or any part thereof relates to the discovery of fact.
- Examination of witnesses is the only method by which the police would be able to discover the facts.
- Solve the mystery in the case but also prepare the evidence to be placed before the court in a clear manner.
- Section 160 CrPC gives power of summoning witnesses.
- Section 161, 162 of CrPC deal with the recording of statements of persons acquainted with the facts and circumstances of the case.
- Section 163 and 164 CrPC apply to suspect and accused also.
- Summoning a person on mere verbal order is against law.
- An order to a subordinate police officer to produce the person for examination is a violation of Supreme Court direction.
- Section 25 of IEA defines any confession made to a police officer cannot be proved against a person accused of any offence.
- It is not the number of witnesses that matter but the quality of evidence led in court.
- A single witness, if believed, is sufficient.
- Rule of prudence forbids, however, conviction being based on the testimony of a solitary eyewitness.
- The statement of witnesses/ suspect u/s 161 CrPC during the course of examination cannot be treated as substantive evidence.
- Sec 32(1) and the portion of discovery u/s 27 of IEA are exceptions.

Hostile witnesses

- The testimony of witnesses who turned hostile has to be accepted to the extent to which it is corroborated by the evidence of a reliable witnesses.
- His evidences also establish the time, date, and place of the incident.
- Ascertain the circumstances in which he turned hostile because of his own involvement or any other reasons.
- Acceptance of some parts of his evidence and rejection of other parts are acceptable as evidence and is not illegal.
- The hostility of a witnesses cannot demolish the prosecution case, when it has already been built on some other evidences and surrounding circumstances.
- The evidence of a hostile witness cannot to be totally discarded.
- The admissible parts of his statement can be used by the prosecution or defence.